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File No.: EXP202200039

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated October 17, 2022, and based on the following:

FACTS

FIRST: On December 20, 2021, a complaint was filed with the Spanish Agency for Data Protection (hereinafter, AEPD) by B.B.B. regarding A.A.A.

SECOND: On October 17, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202200039. The resolution was notified to the appellant by means of the publication of the notification announcement in the Official State Gazette dated December 9, 2022, after two attempts at postal notification were made and could not be carried out, as stipulated in Articles 44 and 45 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced in the file.

THIRD: On February 27, 2023, a recourse for reconsideration was registered at the AEPD filed by the appellant against the resolution indicated in the previous point, in which they express their disagreement with it.

The following legal grounds apply to the above facts:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its letter d) as a ground for inadmissibility of administrative recourses “Having exceeded the period for filing the recourse.”

III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: “The period for filing the recourse for reconsideration shall be one month, if the act is express.”

Article 119 of this law adds that: “The resolution of the recourse will either uphold in whole or in part or dismiss the claims made therein or declare its inadmissibility.”

Regarding the calculation of the indicated period, it must be attended to what is provided in paragraph 4 of Article 30 of the LPACAP, which states: “If the period is set in months or years, these will be calculated from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs.

The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the calculation begins, it will be understood that the period expires on the last day of the month.”

In this case, the resolution of the Director of the Spanish Agency for Data Protection dated October 17, 2022, was notified to the appellant by means of the publication of the notification announcement in the Official State Gazette dated December 9, 2022, after two unsuccessful attempts at postal notification, as stipulated in Articles 44 and 45 of the LPACAP, and the recourse for reconsideration was filed on February 23, 2023.

Therefore, it can be concluded that the filing of the recourse for reconsideration on the indicated date exceeds the legally established filing period, and thus the recourse must be declared inadmissible for being out of time.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the recourse for reconsideration filed by A.A.A. against the resolution of this Agency, issued on October 17, 2022, in file EXP202200039.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative procedure, a contentious-administrative recourse may be filed within a period of two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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